

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Bed Bath & Beyond Inc. (“BBBY”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) (BBBY, collectively with OOCL, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. Consistent with Paragraph 19 of the Presiding Officer’s May 2, 2023 Initial Order in this case, the Parties intend to meet and confer concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case.

The Parties have mutually struggled to develop a jointly proposed schedule that will comply with the 150-day time period for discovery set by the Initial Order and 46 C.F.R. § 502.141(g). The difficulty was not due to disagreement between the Parties, but rather the mismatch between the pre-set end date and the complexity and size of the proceeding. The

proposed schedule we have come up with meets the 150-day schedule and the Parties will make every effort to complete discovery within that time. We recognize, however, that, even aside from the large dollar amount, discovery in this proceeding will be extensive, complicated, and challenging. Among other things, there are certain to be a significant number of depositions, possibly some involving overseas deponents, subpoenas for third-party witnesses here and abroad, and potentially issues regarding foreign discovery statutes. While the Parties will work hard to address such issues together, there may be future need to request one or more extensions. The Parties will act proactively to avoid asking the Presiding Officer for more time and to the extent motions are needed will try to raise them as soon as the need appears and to file them jointly. We raise the issue now only to make the Presiding Officer aware.

That said, the jointly proposed schedule is as follows:

EVENT	PROPOSED DEADLINE
Parties may serve initial written requests for discovery.	June 9, 2023
Parties may serve subpoenas for the production of documents and/or commanding attendance at a deposition to third parties.	June 16, 2023
Complainant to identify expert witnesses, if any.	August 1, 2023
Depositions of fact witnesses may begin.	August 7, 2023
Report of Complainant's experts, if any, to be provided to Respondent.	August 23, 2023
Respondent to identify rebuttal expert witnesses, if any.	September 1, 2023
Last date to serve supplemental discovery requests.	September 12, 2023
Respondent to provide Complainant with rebuttal experts' reports, if any.	September 22, 2023
Depositions of expert witnesses may begin.	October 2, 2023
Close of discovery.	October 19, 2023

EVENT	PROPOSED DEADLINE
Complainant's initial brief due.	November 30, 2023
Respondents' opposition brief due.	January 12, 2024
Complainant's reply brief due.	February 2, 2024

Pursuant to 46 C.F.R. § 502.64(a), the Parties have jointly contacted the Director of the Commission's Office of Consumer Affairs and Dispute Resolution Services and currently are scheduling an initial conference. The Parties will accordingly keep the Presiding Officer apprised as to whether they initiate CADRS-led mediation.

[SIGNATURE PAGE FOLLOWS]

Dated: June 6, 2023

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Respectfully submitted,

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